



House of Representatives

General Assembly

File No. 631

February Session, 2026

Substitute House Bill No. 5535

House of Representatives, April 14, 2026

The Committee on Judiciary reported through REP. STAFSTROM of the 129th Dist., Chairperson of the Committee on the part of the House, that the substitute bill ought to pass.

AN ACT CONCERNING REVIEW OF WRONGFUL INCARCERATION AWARDS BY THE GENERAL ASSEMBLY.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Subdivision (1) of subsection (d) of section 54-102uu of the
2 2026 supplement to the general statutes is repealed and the following is
3 substituted in lieu thereof (*Effective from passage*):

4 (d) (1) If the Claims Commissioner determines that such claimant has
5 established such claimant's eligibility under subsection (a) of this section
6 by a preponderance of the evidence, the Claims Commissioner shall
7 order the immediate payment to such claimant of compensation for
8 such wrongful incarceration in an amount determined pursuant to
9 subdivision (2) of this subsection, unless (A) such compensation award
10 is in an amount exceeding thirty-five thousand dollars, or (B) such
11 claimant requests, in accordance with section 4-158, that the General
12 Assembly review such compensation award. The Claims Commissioner
13 shall submit any such compensation award described in subparagraph
14 (A) or (B) of this subdivision or an agreed to or stipulated award

15 pursuant to subsection (f) of this section in an amount greater than one
16 million five hundred thousand dollars, and the claim from which such
17 award arose to the General Assembly in the same manner as provided
18 under section 4-159, not later than five business days after the
19 commissioner issues such award determination or receives such request
20 for review, whichever is sooner. The General Assembly shall review any
21 such compensation award and the claim from which such award arose
22 not later than [forty-five] sixty days after such award and claim is
23 submitted to the General Assembly and may deny or confirm such
24 compensation award, or remand the claim to the Office of the Claims
25 Commissioner for such further proceedings as the General Assembly
26 may direct. If the General Assembly takes no action on such
27 compensation award, the determination made by the Claims
28 Commissioner shall be deemed confirmed.

This act shall take effect as follows and shall amend the following sections:		
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Section 1	<i>from passage</i>	54-102uu(d)(1)
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JUD *Joint Favorable Subst.*

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note**State Impact:** None**Municipal Impact:** None**Explanation**

The bill extends the time period (from 45 to 60 days) that the General Assembly has to review wrongful incarceration compensation awards and results in no fiscal impact to the state.

The Out Years**State Impact:** None**Municipal Impact:** None

OLR Bill Analysis**sHB 5535*****AN ACT CONCERNING REVIEW OF WRONGFUL INCARCERATION AWARDS BY THE GENERAL ASSEMBLY.*****SUMMARY**

This bill extends the time period for the General Assembly to review wrongful incarceration compensation awards and their associated claims.

By law, the General Assembly must review a wrongful incarceration compensation award from the claims commissioner if (1) the claimant requests the review; (2) the award exceeds \$35,000; or (3) it involves an agreed to or stipulated award exceeding \$1.5 million. (The latter are awards initially negotiated by the attorney general.) The General Assembly may deny or confirm the award or remand the claim to the claims commissioner for further proceedings.

Under current law, if the General Assembly does not act on an award within 45 days after its submission, the claims commissioner's determination is deemed confirmed. The bill extends this window for consideration to 60 days.

Under existing law, unchanged by the bill, submissions that occur when the General Assembly is not in a regular session or too close to the end of a regular session to be acted on are deemed submitted on the first day of the next regular session.

EFFECTIVE DATE: Upon passage

COMMITTEE ACTION

Judiciary Committee

Joint Favorable Substitute

Yea 41 Nay 0 (03/30/2026)